

1.) Briefly explain legal provisions relating to IT profession in line with Personal Data Protection Act No.9 of 2022.

IT law is defined as the law that regulates IT sector and controls human activities in the IT environment/industry. These laws include data protection laws, intellectual property laws, and cybercrime laws etc. In general, IT professionals are required to comply with laws and regulations that govern their profession and industry.

PDPA

What is personal data?

The PDPA defines personal data as any information that can identify a data subject directly or indirectly, by reference to:

- an identifier such as a name, an identification number, location data, or an online identifier; or
- one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that individual or natural person.

What is the Personal Data Protection Act?

An act to provide for the regulation of processing of personal data; to identify and strengthen the rights of data subjects in relation to the protection of personal data; to provide for the establishment of the data protection authority; and to provide for matters connected therewith or incidental thereto.

Simply, The PDPA is the principal legislation that deals with personal data protection in Sri Lanka. The PDPA aims to safeguard the rights of individuals and ensure consumer trust in information privacy in online transactions and information networks resulting from growth and innovation in the digital economy.

The Act is designed to balance the interest of the enterprises and organizations as against the rights of individuals to ensure transparency and accountability in data processing activities. The Act has imposed several obligations on those who collect and process personal data.

To whom does this act apply?

The Act is designed to apply to entities located in Sri Lanka as well as outside Sri Lanka, including those offering goods or services to Sri Lankans. However, the PDPA does not apply to any personal data processed purely for personal, domestic, or household purposes by an individual.

It provides for a legal framework to protect personal data of Data Subjects and requires those who collect data (controllers) to process data lawfully. It also provides a range of rights to Data Subjects, such as the right to withdraw consent, object to processing, access and rectification, erasure and request review of automated decision making. Controllers have the right to grant or refuse requests subject to criteria specified in the Act.

Penalty

Data protection Authority can order,

to make a payment of such sum of money as compensation as determined by the Authority to an aggrieved person who has suffered harm, loss, or damage as a result of any contravention by a controller or processor.

Section 38 of the PDPA imposes a penalty of up to LKR 10 million (approx. €28,110) for the failure to comply with a directive issued under the provisions of Section 35 of the PDPA, taking into consideration the nature and extent of non-compliance, as well as its impact on data subjects.

Data privacy is also important to IT professionals because **for individuals to be willing to engage online, they must trust that their personal data will be handled with care**. So, when designing and launching various software or programs it is vital to refer these laws related to this area specially this PDPA.

2.) Explain different aspects of human nature (sociology aspects).

3.) Explain legislation related to IT industry and profession. (Local and global legislation)

LOCAL-

☐ **Computer & Information Technology Council of Sri Lanka Act No 10 of 1984**

This is an act to provide for the establishment of the computer and information technology council of Sri Lanka and to make provision for matters connected there with or incidental to the matters aforesaid.

Part I Establishment of the computer and information technology council of Sri Lanka

This part clearly illustrates body corporate, functions and duties of council, Power of the council like that.

Part II Staff of the council

Part III Finance (Fund, Borrowing power of council) 6

Part IV General (Delegation of powers, duties, and functions, Returns and information)

Computer Crime Act No.24 of 2007

The computer crime Act is an Act that control the computer crimes and punishments to the computer criminals. The reason behind this establishment was the rapid development of technology and the decrement of human attitudes. As the introduction of “Facebook” in to Sri Lanka , many of people trying to use Facebook for the illegal activities like sexual harassments , abusing and blackmailing etc.

Offenses and punishments-

- Securing unauthorized access to a computer an offence. - **fine not exceeding 100 000 or 5 years imprisonment or both**
- Causing a computer to perform a function without lawful authority an offence (unauthorized modification)- **fine not exceeding 300 000- or 5-years imprisonment or both**

- Offences committed against national security. -5 years imprisonment
- Dealing with data unlawfully obtained an offence-fine not less than 100,000 and not exceeding 300,000 or 6 months-3 years imprisonment or both.
- Unauthorized disclosure of information enabling access to a service, an offence- fine not less than 100,000 and not exceeding 300,000 or 6 months-3 years imprisonment or both

✚ The jurisdiction to hear, try and determine all offenses under this act shall be vested with high court.

❑ Electronic Transaction Act No.19 of 2006

This is AN ACT to recognize and facilitate the formation of contracts, the creation and exchange of data messages, electronic documents, electronic records, and other communications in electronic form in Sri Lanka, and to provide for the appointment of a certification authority and accreditation of certification service providers, and to provide for matters connected therewith or incidental thereto.

Legal recognition of electronic records.

No data message, electronic document, electronic record, or other communication shall be denied legal recognition, effect, validity, or enforceability on the ground that it is in electronic form.

Requirement for writing.

Notwithstanding the fact that the provisions of written laws for the time being in force in Sri Lanka attach legal validity to certain instruments, only if such instruments have been reduced to writing, such requirement shall be deemed to be satisfied by a data message, electronic document, electronic record, or other communication in electronic form if the information contained therein is accessible so as to be usable for subsequent reference.

❑ Payment Devices Frauds Act No 30 of 2006

This is an Act to prevent the possession and use of unauthorized payment devices (deals with credit card frauds).

❑ Payments and settlements Act No.28 of 2005

❑ Information communication Technology Act No.27 of 2003

❑ Intellectual Property Act 36 Of 2003

❑ Telecommunications Act No .25of 1991.

Legal provisions for Usage of License copies of software

In Sri Lanka illegal copies of software are widely used by many individuals and organizations.

The Intellectual Property Act No.36 of 2003 provides the required, Intellectual Property framework for the protection of Information Technology products and services and it has clarified fair use (copying) of software as well.

GLOBAL-

Different countries have their own legislation relating to IT field.

United Kingdom “Computer Misuse Act 1990”:

The first piece of UK legislation designed to specifically address computer misuse was the Computer Misuse Act 1990. The Act was a response to growing concern that existing legislation was inadequate for dealing with hackers.

The Computer Misuse Act 1990, ‘an Act to make provision for securing computer material against unauthorized access or modification; and for connected purposes’, set out three computer misuse offences.

1. Unauthorized access to computer material
2. Unauthorized access with intent to commit or facilitate commission of further offences.
3. Unauthorized modification of computer material

The Communications Decency Act (CDA):

Passed and enacted in 1996 by USA, attempt to regulate children’s access to sexually explicit material on the Internet.

The Child Online Protection Act of USA (COPA):

In 1998 a narrower version of the CDA required commercial Web sites to verify proof of age before giving users access to sexually explicit material considered obscene for minors.

Children's Internet Protection Act (CIPA):

In 2000, USA enacted CIPA, which took effect in April 2001, requiring schools and libraries receiving federal technology funds to install pornography-blocking software on their computers.

Legislation in Korea:

In 2001, the South Korea's Parliament passed the Controversial Internet Content Filtering Ordinance, which highly regulates the country's Internet content.

4.) Discuss different categories of law in line with.

There are many ways of categorization.

1-> Related to specific subject areas- EX: Business or commercial law

General application-Public Law, Private Law, Civil Law , Criminal Law, Contract Law , Land Law , Construction Law , Commercial Law etc.

2-> Criminal law and Civil law

Criminal Law

A “crime” is described as an offence punishable by the state. Criminal law refers to a body of laws that apply to criminal acts such as murder, robbery, theft, sexual offenses etc. In order to prove a criminal offense both physical and mental factors need to be there. CRIMINAL LAWS of Sri Lanka are divided into three major acts.

1. Penal code
2. Criminal Procedure Code
3. Evidence Ordinance

Besides these major acts, special Criminal Laws are also passed by the Sri Lankan Parliament. Sri Lanka's criminal law is based almost entirely on English law principles, and it is entirely statutory.

Civil Law

The term "offence" is not typically used in civil law or civil matters, where "civil wrong" is more appropriate. Civil law is divided into different subject areas, including property and family law, as well as obligations such as contracts and tort/delict law. Commercial law has sub-categories such as partnership law, company law, banking law, and agency law. Business law and mercantile law refer to combinations of these sub-divisions of commercial law.

Comparison of Criminal and Civil Law:

	Criminal	Civil
Purpose	Punishment of the wrongdoer	Compensation of the victim
Case brought by	The state	The victim
Action	Prosecution	Suing
Burden of proof	Beyond reasonable doubt	On a balance of probabilities
Court	Magistrate's court, High court	District court
Outcome if defendant loses	Imprisonment, fine, community service, probation	Damages, specific performances, injunction

3-> Public law and Private Law

Public law - Administrative Law, Constitutional Law and Local Government of Law

1. Administrative Law:

This covers the legal principles governing the relationship between the government and citizens. In Sri Lanka, Administrative Law governs the organization and functions of public authorities, including government departments, statutory corporations, and boards.

2. Constitutional Law (Basic Law):

Constitutional Law is crucial for citizens and encompasses Parliament, elections, fundamental rights, universal franchise, referendum, and citizenship. Sri Lanka's Constitutional Law is based on English law, and when disputes arise in Parliament,

3. Local Government Law:

Next to Constitutional Law, the most important to citizens is Local Government Law. So, matters relating to County Councils, Grater Councils in UK and Municipal Councils, Urban Councils and Pradeshiya Sabah.

private law-Law of property, Law of persons, Law of contract, Law of delict, Law of tort, Partnership law, Company law, Banking law, Intellectual property law, Tax law, Employment law

1. *Law of Property*

Property law governs ownership of land and movable property, joint ownership, mortgages, leases, and possession, which are important rights.

2. *Law of Persons*

“Persons Law” applies to family or domestic matters such as birth and legitimacy, marriage, divorce, adoption, the rights of parents and children, husband and wife, guardian and ward, mentally unsound persons, and prodigals.

3. *Law of Contract*

Contract law is a branch of civil law that governs the enforceability of legally binding agreements. It is a crucial aspect of business and commercial law, as all business transactions rely on contracts.

4. *Law of Tort (Delict Law)*

Tort law deals with civil wrongs that result in legal action, rather than criminal offenses. A tort is a breach of duty that gives rise to legal action by the injured party against the wrongdoer.

5. *Partnership law*

The business organizations in Sri Lanka include partnerships, unincorporated associations, and sole traders. In the UK, there are private and government-owned business entities. Private business entities in Sri Lanka include private limited companies, public limited companies, and multi-national companies, which are registered with the Registrar of Companies. Partnership refers to a relationship between people who carry out business with the objective of making a profit, and partnership law in Sri Lanka is based on English law.

- According to this statutory definition, there are 3 essential elements.

1. A Business

- Any trade, occupation or profession, commercial activity or adventure

2. Two or more people carrying on business in common.

- If run by one individual or more on behalf of himself and others, there is a partnership. If run by one individual or more on behalf of himself and others there is a partnership. "A person" includes a natural or artificial (legal) person.

3. Profit motive

4. Agreement to share profits.

- Under the Business Names Act of 1985, all partners' names and business premises must be displayed on relevant letterheads, and the use of offensive or misleading artificial names is prohibited.

6. *Company Law*

The Companies Act of 2007 is the main legislative enactment for companies which become separate legal persons upon incorporation. This allows companies to enter into contracts, sue and be sued, and provides advantages for commercial and business purposes. Corporate entities are artificial legal persons endowed with rights and obligations. A company's separate legal personality is distinct from its members and allows it to sue and be sued by its name.

7. *Banking Law*

Banking law governs activities and transactions between banks and their customers. In Sri Lanka, banking law is based on English law.

8. *Intellectual Property Law*

"Intellectual property" covers all creations of the mind recognized and protected by law, such as patents, trademarks, designs, and copyright.

9. *Tax Law*

Tax legislation in any country is contentious due to conflicting interests between the government and taxpayers. Sri Lanka has various tax laws, including the Inland Revenue Act No. 38 of 2000 and Stamp Duty Act of 1982.

10. *Employment Law (Industrial Law/ Labor law)*

Industrial and Labor Law aims to regulate the relationship between employers and employees, protecting employees from exploitation and wrongful treatment.

Legislation covers topics such as industrial disputes, collective agreements, compensation, leave, and employment of women and young persons.

4-> Substantive law and procedural law

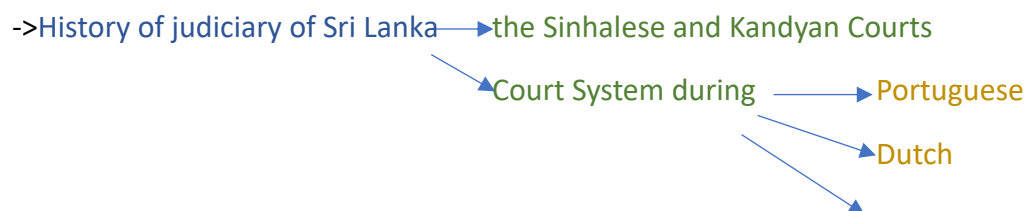
Substantive law is the set of laws that governs how members of a society are to behave. It is contrasted with procedural law, which is the set of procedures for making, administering, and enforcing substantive law.

Substantive law defines rights and responsibilities in civil law, and crimes and punishments in criminal law. It may be codified in statutes or exist through precedent in common law. The Penal Code of Sri Lanka contains the substantive criminal law; the procedural or adjectival law is contained in the Criminal Procedure Code which supplements the former by rules of Procedure. The Penal Code defines offences and also provides for their punishments.

5.) Discuss 5 legal systems in Sri Lanka.

1. Roman Dutch Law
2. English Law
3. Kandyan Law
4. Muslim Law
5. Thesawalamai Law

6.) Different courts and their functions



British

->Modern Court System in Sri Lanka

The Supreme Court of Sri Lanka

The Court of Appeal of Sri Lanka



Established by
constitution.

The High Court of Sri Lanka

The District Courts

The Magistrate Courts

The Primary Courts

Small Claims Courts (According to 2022 amendment law)



Established by Judicature Act, No2 of 1978

7.) Differentiate between law and ethics.

8.) Sources of law

Main Sources of Law

1. Legislation
2. Judicial Precedents (Judges-Made Law or Case Law)
3. Equity
4. Religion
5. Customs
6. Public International Law
7. Opinions of the Jurists / writers

Sources of Law Relating to Various Legal Systems in Sri Lanka

1. Roman Dutch law-

Treaties of jurists

Statutes

Judicial decisions

Juristic opinions

Customs

2.English law-

Statutes/legislation

Common law

Equity

3.Kandyan law

Written decrees

Books of authority on Kandyan law

Decisions of board of commissions

Case law

Statute law

4.Muslim law

Quran

Hudiths

Ijma

Qiyas

Legislation

Muslim customs

Case laws

5. Thesawalamai law

Thesawalamai code

Thesawalamai regulations and decisions of our courts

Statute law

Customary law Tamil people

9.) Interpretation rules

✚ Need to clarify the meaning of words in a Statute

- a. Literal rule
- b. Golden rule
- c. Mischief rule

a. Literal rule

-words must be given their plain, every day, ordinary meaning.

-Problem with literal rule – Do words have a single incontestable meaning?

Fisher v Bell [1961] 1 QB 394

– Meaning of 'offer for sale' →

The defendant had a flick knife displayed in his shop window with a price tag on it. Statute made it a criminal offence to 'offer' such flick knives for sale. His conviction was quashed as goods on display in shops are not 'offers' in the technical sense but an invitation to treat. The court applied the literal rule of statutory interpretation. The defendant was therefore not guilty of the offence with which he had been charged.

b. Golden Rule

The 'golden' rule – applies where an application of the literal rule would produce an 'absurd' result.

Adler v George

Facts

- Under s.3 Official Secrets Act 1920, it was an offence to obstruct a HM Forces '*in the vicinity of a prohibited place*'. The defendant had entered an RAF Station, a prohibited place under the Act, rather than 'in the vicinity' of it.

Issue

- If the literal rule was applied, the defendant did not infringe the terms of the act as he was 'in the area' instead of 'in the vicinity' of the prohibited place.

Held (High Court, Queen's Bench Division)

- The defendant's conviction was upheld under the golden rule.
- The golden rule was applied to extend the meaning of s.3 – 'in the vicinity' must be construed as 'in or in the vicinity of'.

c. The 'mischief rule'

-The 'mischief' rule – applies when neither the literal rule or the golden rule resolve the issue

-Court must consider factors set out in Heydon's Case

The rule in Heydon's Case – The court must consider:

- The common law position before the passing of the statute;
- The mischief in law the common law did not deal with;
- The remedy Parliament intended to provide for this mischief
- The reason for Parliament adopting that remedy.

Smith v Hughes

In this case, the Judge observed that the Street Offences Act 1959 was intended to clean the streets, so that people will not be harassed, molested or solicited by common prostitutes. He said that if prostitutes were attracting passersby from balconies and windows, this Act would nevertheless apply. Hence, the Court held that the use of the words "in a street" did not prevent their prosecution.